

Council Meeting
May 26, 2021
Page 1

The Claremont City Council held a meeting on Wednesday, May 26, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

By telephone:

1-646-558-8656

Webinar ID: 815 2945 7408

Passcode: 739587

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Girard – Council Chambers, Councilors Koloski and Stone, public

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – home upstairs, family downstairs

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – Council Chambers, Councilors Girard and Stone, public

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Councilors Girard and Koloski, public

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

NEW BUSINESS

Interview and Selection of Candidate to Fill Vacant At-Large Councilor Seat

Candidates: Matt Mooshian via Zoom and Michael Demars in Council Chambers.

Mayor Lovett explained the process to fill the vacant At-Large Councilor seat left vacant by Erica Sweetser.

Interview Process:

1. Each applicant will be given two minutes for an Opening Statement, and two minutes for a Closing Statement. Each applicant will be asked to answer the following questions (applicants were given the questions before this meeting):

- A. How have you personally invested yourself in Claremont?
- B. What motivates you to serve as a City Councilor?
- C. What do you feel is one of the City's biggest challenges?
- D. What committees do you see yourself participating in as a Councilor, and why?

Each applicant will be given two minutes to answer each of the above questions. Councilors will not be given an opportunity to redirect.

2. After the interviews are completed, each member of the Council will cast a vote. If there is a clear winner during the first round, then no further voting is necessary. If there is not a clear winner, a second round of voting will be conducted.

3. The applicant with the most votes, will be sworn in by City Clerk Gwen Melcher. The new Councilor will then take his/her seat and the meeting will resume.

Mayor Lovett asked Councilors if there were any other questions that they wanted asked.

Councilor Matteau: Do they plan to put their names on the ballot in the fall?

Mayor Lovett: Preparation for the budget. Have they reviewed the budget?

Opening Statement

Michael Demars: Has been on other boards in the past. Feels like a lot of good work has been done in the past and now is the time to launch into a much more prosperous future for Claremont. He has a little more time now and he would like to make things better for everyone.

Matt Mooshian: Feels this is an opportunity to represent folks that do not always feel they can speak out; he works with LBGTQ folks, Rural Outright, and is a case manager at West Central. He feels like he can be himself in Claremont and he can help Claremont get to where we want Claremont to be.

How have you personally invested yourself in Claremont?

Mr. Demars: Went to Claremont schools and graduated from Stevens High Schools. He has a business in Claremont. Made a lot of invests regarding property. Can't see himself living anywhere else.

Mr. Mooshian: He's been part of events such as Pride and Cupcake War. Trying to build connections, talking with neighbors while walking the dog, and hosting local events.

What motivates you to serve as a City Councilor?

Mr. Demars: As business owner has had to reinvent the business through challenging situations and that experience could be useful to Claremont. He's learned to collaborate with his business team. He wants to try to help Claremont.

Mr. Mooshian: His whole life he's had a spirit of service. In college, worked on Get Out the Vote. In his work, he chairs programs. The City Council is a great place to be a voice for those who want to be heard, and have new ideas and a younger perspective.

What do you feel is one of the City's biggest challenges?

Mr. Demars: Economics. There are so many parts to that. There are socio-economic challenges here. Economics make it hard to pave roads and bring our natural resources to their full potential (i.e. Rail Trail, Arrowhead). Feels there are a lot of ways to help solve our high tax rate issue. Suggested using successes from other similar communities as examples to follow.

Mr. Mooshian: Sees projects that are happening to try to promote Sullivan County, and Claremont. Talked about things happening at the state level (i.e. budgets) and telling the story about how that will affect Claremont. Sees that as something the Council can work on.

What committees do you see yourself participating in as a Councilor, and why?

Mr. Demars: Spent 4-5 years on the Planning Board, and time on the Conservation Commission. He is now on the Policy Committee. His opinion is that a new Councilor should not overcommit. He feels he would be most effective with these two: Council and Policy Committee.

Mr. Mooshian: Currently on the Planning Board and thinks he would be a great fit for the Policy Committee. Has a lot of policy experience.

Will you run for a Council Seat in November?

Mr. Demars: Doesn't know. This is a way for him to see if this will be a good fit. He won't commit at this time. He will do the best he can for the next 6 months.

Mr. Mooshian: Would have to see how this goes. He can see it happening, but won't commit.

Have you reviewed the budget?

Mayor Lovett said there will be a full day budget session coming; she asked if they have taken the time to review the proposed budget. If yes, any thoughts?

Mr. Demars: No, he hasn't, but if seated, will review it thoroughly. He has a budget for his own company, and is familiar with the process. He didn't feel it was necessary to review while preparing for this meeting.

Mr. Mooshian: In anticipation for tonight, looked at it, but not in depth. He has familiarity with budgets and looks forward to the process.

Closing Statement

Mr. Demars noted there was a typographical error in the newspaper; his business is CCI Managed Services, not CGI. He works with the County and school districts in the area and has a good relationship, which he feels is important. He would appreciate the opportunity to serve on the Council.

Mr. Mooshian: He has a spirit of service. He enjoys doing it and wants to continue doing it. He wants to be a part of shaping where Claremont is going.

Roll call vote:

O'Hearne - Demars

Girard - Demars

Damren - Demars

Matteau - Demars

Koloski - Demars

Contois - Mooshian

Stone - Demars

Lovett - Demars

Motion carried 7 for Demars and 1 for Mooshian.

Swearing In of At-Large Councilor

City Clerk Gwendolyn Melcher swore in Michael Demars as the newest At-Large Councilor to fill the unexpired term of the seat vacated by Erica Sweetser. The term will expire December 31, 2021.

AGENDA CHANGES

Mayor Lovett asked to add under New Business item 11f. Discussion on Resuming In-Person Meeting in Council Chambers in June. Councilors concurred.

Mr. Morris said that Planning and Development Director Nancy Merrill had asked to remove Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – First Reading as a couple of changes are needed before bringing this back to the Council.

Councilor Koloski asked to move Policy Committee Discussion up on the agenda. Mayor Lovett said they would review the time after Old Business to see if it could be moved up.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to accept the minutes of the May 12, 2021, City Council meeting.

Roll call vote:

O’Hearne - abstain

Girard - yes

Demars - abstain

Damren - yes

Matteau - abstain

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0, 3 abstain.

MAYOR’S NOTES

- Memorial Day Parade Monday, May 31st
- Friday, Sons of the American Legion will put up flags in the downtown
- Gatekeepers training, suicide training, how to identify people at risk, June 1, 4 p.m.-6 p.m., virtual training
- Council all day budget meeting June 5, 9-4:30 p.m.

CITY MANAGER’S REPORT

- **Opioid Lawsuit** – New Hampshire House Bill 1639 became law last summer establishing an opioid abatement trust fund. Counties and political subdivisions are to receive 15% of the funds per settlement, and all remaining funds will pass into the trust to be managed by the New Hampshire Opioid Abatement Advisory Commission with all members appointed by the Governor. Any future settlement funds related to opioids in New Hampshire will also be distributed in this same manner. The City of Claremont has received notice from the Attorney General that the first settlement payment from the State of New Hampshire vs. McKinsey and Company Inc. was in the amount of \$2,762,394.75, of which 15% (\$414,359.18) will be distributed to qualifying subdivisions.

Claremont's portion of this payment will be \$4,185.03, which needs to be spent to fight the opioid epidemic.

- **Comcast Line Extensions-** Regarding the franchise-required line extensions, Comcast has started the construction process by submitting pole applications for the project areas. They are currently waiting for pole make-ready estimates from the pole owners. The line extensions are on track to be completed well before the deadline in the franchise agreement.

Comcast is also in the process of constructing a line extension for Pappas Road (which is not part of the franchise agreement), which will pass 14 homes. The Pappas Road project is also in the pole make-ready phase of construction. They expect to complete this line extension in Q3 2021.

The City received an email from Comcast saying they are close to completing a line extension to 309-560 Bible Hill Road.

- **Micro-Enterprise Grants** – River Valley Community College was recently awarded a \$64,000 Community Development Block Grant (CBDG) to help low- to moderate-income business owners in Sullivan County. The grant will help fund entrepreneurial training, office spaces, developing business plans, supplying software, as well as other support functions. These grants will be available to microbusinesses (less than five employees, including the owner). This grant came about through a partnership between River Valley Community College, the Claremont MakerSpace, the City of Claremont, Sullivan County, Upper Valley Lake Sunapee Regional Planning Commission, and the Small Business Development Center (SBDC).

Deputy Health Officer and Building Inspector Leigh Hayes started work this week. Water situation-drought. 1.5 inches below the spillway at Whitewater Reservoir. Dole Reservoir is 2-2.5 feet down.

Hydrant testing beginning of June. After, will pump water from the Sugar River to Dole Reservoir which will refill the reservoir and test the pumps at the same time.

Public Works is working on the cemeteries to have them in good shape for Memorial Day weekend.

Moody Park Road opens this weekend and will remain open through the fall.

The tax warrant is complete and Staff is in the process of mailing out tax bills.

- **Pleasant Street** – The City negotiated a couple changes to materials to help lower the cost of the project (i.e. the lights and the granite benches).

The start date of the project has been pushed out a month while the contractor waits for the plastic pipes for the temporary water line. They expect to break ground in mid-July.

- **Fire Hydrant Testing** – The Fire Department will test all City-owned hydrants, approximately 400 in total, beginning June 1, 2021. Testing fire hydrants is a requirement of the Insurance Services Office (ISO).

COVID-19 Update

- **COVID-19 Update** – At the time this report was written, active COVID-19 cases throughout the State of New Hampshire have continued to decline with a 16% decrease in active cases across the state from May 12, 2021 to May 18, 2021. The City of Claremont currently has 21 active cases, with the current Sullivan County infection rate at .77%. These numbers have held fairly consistent over the past couple weeks.

Today, there has been a 34% decrease in the last week in active cases. The infection rate has gone down to .64%. There are 8 active cases in Claremont.

In order to reduce these numbers in Claremont, we must continue our efforts to control the spread of the virus. It is still important that people maintain social distancing, wash their hands, and wear masks when they are in large groups or unable to socially distance.

Vaccinations are now available for anyone over the age of 16 in the State of New Hampshire (resident or non-resident). Drop-in vaccinations are also available. This means it is not required for people to make an appointment through the State. Citizens can go to Walmart or CVS for vaccinations, and there will be multiple pop-up events throughout the community.

As we enter the summer season, the City is working with local organizations to plan and bring back many community events. We ask everyone to please be mindful and respectful of others by maintaining the proper social distancing and to wear masks when this is not possible.

APPOINTMENT TO BOARDS AND COMMITTEES

Zoning Board of Adjustment

Mr. Morris said an applicant had requested a full Zoning Board of Adjustment (ZBA) be seated for its hearing and with this appointment, the ZBA would be full.

A motion was made by Councilor Koloski and seconded by Councilor Stone to appoint Todd Russel to seat 4 of the Zoning Board of Adjustment.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Councilor appointments for Energy Advisory Committee, Airport Advisory Board,
Historic District Commission and Policy Committee

A motion was made by Councilor Stone and seconded by Councilor Matteau to appoint Councilor Demars to seat 1 of the Policy Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - abstain

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to appoint Councilor Contois to seat 2, City Council Representative, of the Historic District Commission.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - abstain

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

A motion was made by Councilor Koloski and seconded by Councilor Stone to appoint Councilor Girard to City Council Representative seat of the Airport Advisory Board.

Roll call vote:

O’Hearne - yes

Girard - abstain

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, 1 abstain.

A motion was made by Councilor Matteau and seconded by Councilor Koloski to appoint Mayor Lovett to seat 4, City Council Representative, of the Energy Advisory Committee.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - abstain

Motion carried 8-0, 1 abstain.

CITIZEN’S FORUM

Andrew O’Hearne spoke as a Ward 1 resident and State Representative, saying that HB88 (This bill provides that the City Council of Claremont shall appoint the Police Commission.) was signed by the Governor. Effective date: May 17, 2021.

Mayor Lovett said because the meeting was ahead of schedule, she would re-open Citizen’s Forum closer to 7:00 p.m.

OLD BUSINESS

Legislative Update

Mayor Lovett said that HB88 started with the Policy Committee. She gave a brief update regarding the ARPA funds. The City should receive half the funds within the next few weeks and the other half will be released in 12 months.

Donation Policy Discussion

Proposed Donation Policy:

Monetary Donations:

The Claremont City Council authorizes the City Manager or his/her designee to apply, accept and expend, without further action from the City Council, unanticipated revenue or grants from State, Federal, or other governmental units or from private sources of less than \$10,000 in accordance with RSA 31 :95-b.

Unanticipated monies in an amount equal to or exceeding \$10,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

Personal Property Donations:

The Claremont City Council authorizes the City Manager or his/her designee to accept gifts of personal property with a value of less than \$5,000, other than land, which may be offered to the City of Claremont for any public purpose in accordance with RSA 31 :95-e.

Personal Property, with a value equal to or exceeding \$5,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

No acceptance of any personal property under the authority of this section shall be deemed to bind the City to raise, appropriate or expend any public funds for the operation, maintenance, repair, or replacement of such personal property.

Land donation:

All land donated to the City of Claremont must be accepted by a majority vote of the City Council after a duly noticed public hearing.

Reporting:

Donations accepted under this policy will be reported to the City Council at least quarterly.

Mr. Morris gave a synopsis of the policy.

Councilor Koloski wanted to go on record that he was more comfortable with the current \$5,000 limit than the \$10,000 limit. He wished for language to allow a donor to come before the Council, if they so choose, regardless of the dollar amount. Mr. Morris said he can add language that any donor could come before the Council at any time. There was discussion that at the Policy Committee meeting the language did not preclude that.

Councilor Koloski said he would prefer the Donation Report be read during the City Manager's Report, so that it's not buried in the Council packet.

Mayor Lovett had done some research and she will send it to the Council through the Council Clerk and maybe that will help with some questions.

There was a brief discussion about having a separate policy for advertising on public property.

A majority of the Councilors agreed that the City Manager move forward to draft the Donation Policy ordinance.

Councilor Stone asked about having language that the quarterly Donations Report would be included in the City Manager's Report. Mayor Lovett said there are different options, however, she didn't have the research in front of her in order to be specific.

Water Rates Discussion

Mr. Morris gave a brief introduction. The current water rates expire at the end of June and any ordinance changes will require two Council meetings to be approved.

Alex Gleeson, Public Works Director, showed a PowerPoint presentation, City of Claremont, NH Water and Sewer Rate Analysis & Recommendation.

Proposed Claremont Rate Structure

(Per Quarterly Billing Period)

PROPOSED CLAREMONT RATE STRUCTURE PER QUARTERLY BILLING

WATER	# of Cust	FY 2021	Proposed FY 2022	Proposed FY 2023	Proposed FY 2024	Proposed FY 2025	Proposed FY 2026
Fixed Fee (5/8" Meter)		\$ 18.10	\$ 18.60	\$ 19.10	\$ 19.60	\$ 20.15	\$ 20.70
0-1,000 CF Used	902	\$ 2.40	\$ 2.50	\$ 2.60	\$ 2.70	\$ 2.80	\$ 2.90
1,001-12,500 CF Used	2,149	\$ 7.80	\$ 7.20	\$ 7.40	\$ 7.60	\$ 7.80	\$ 8.00
12,501 - 50,000 CF Used	196	\$ 6.20					
Over 50,000 CF Used	38	\$ 5.50	\$ 5.70	\$ 5.90	\$ 6.10	\$ 6.30	\$ 6.50
Flat Water Rate	79	\$ 191.60	\$ 196.75	\$ 202.05	\$ 207.50	\$ 213.10	\$ 218.85

SEWER	# of Cust	FY 2021	Proposed FY 2022	Proposed FY 2023	Proposed FY 2024	Proposed FY 2025	Proposed FY 2026
Fixed Fee		\$ 49.00	\$ 50.25	\$ 51.55	\$ 52.90	\$ 54.30	\$ 55.70
All Usage	2,627	\$ 5.90	\$ 6.10	\$ 6.30	\$ 6.50	\$ 6.70	\$ 6.90
Flat Sewer Rate	11	\$ 179.50	\$ 184.15	\$ 188.95	\$ 193.85	\$ 198.90	\$ 204.05

Usage rates are per 100 Cu Ft (CF)



*Water Fixed fees and Flat Rate increases 2.7% per year.
Hydrants and Fire Lines increase 2% per year.
Sewer Fixed fees and Flat Rate increases 2.6% per year.*

Comparison of 4 Options

(Per Quarterly Billing Period)

Single Residential User										
Combined Water and Sewer Sample Quarterly Bills for Claremont										
		Meter Size	Usage (cf)	Actual FY2021	Qtrly Incr (decr) FY2021-FY2022	Qtrly Incr (decr) FY2022-FY2023	Qtrly Incr (decr) FY2023-FY2024	Qtrly Incr (decr) FY2024-FY2025	Qtrly Incr (decr) FY2025-FY2026	Cumul Qtrly Incr (decr) FY2022-FY2026
Proposed Rate Structure		5/8"	750	\$ 129.35	\$ 4.00	\$ 4.05	\$ 4.10	\$ 4.20	\$ 4.20	\$ 20.55
Freeze All Rates Year 1		5/8"	750	\$ 129.35	\$ -	\$ 5.70	\$ 5.80	\$ 5.95	\$ 6.05	\$ 23.50
Freeze Sewer Rates Year 1		5/8"	750	\$ 129.35	\$ 1.25	\$ 5.60	\$ 5.70	\$ 5.85	\$ 5.95	\$ 24.35
One Water Rate		5/8"	750	\$ 129.35	\$ 23.05	\$ 3.75	\$ 4.00	\$ 4.05	\$ 4.10	\$ 38.95
Average Claremont Residential User										
Combined Water and Sewer Sample Quarterly Bills for Claremont										
		Meter Size	Usage (cf)	Actual FY2021	Qtrly Incr (decr) FY2021-FY2022	Qtrly Incr (decr) FY2022-FY2023	Qtrly Incr (decr) FY2023-FY2024	Qtrly Incr (decr) FY2024-FY2025	Qtrly Incr (decr) FY2025-FY2026	Cumul Qtrly Incr (decr) FY2022-FY2026
Proposed Rate Structure		5/8"	1,605	\$ 232.99	\$ 2.33	\$ 7.22	\$ 7.27	\$ 7.37	\$ 7.37	\$ 31.56
Freeze All Rates Year 1		5/8"	1,605	\$ 232.99	\$ -	\$ 6.10	\$ 9.82	\$ 9.97	\$ 10.68	\$ 36.57
Freeze Sewer Rates Year 1		5/8"	1,605	\$ 232.99	\$ (2.13)	\$ 9.63	\$ 9.72	\$ 9.88	\$ 9.97	\$ 37.07
One Water Rate		5/8"	1,605	\$ 232.99	\$ 17.49	\$ 6.46	\$ 6.57	\$ 6.62	\$ 6.67	\$ 43.80
Medium Commercial User										
Combined Water and Sewer Sample Quarterly Bills for Claremont										
		Meter Size	Usage (cf)	Actual FY2021	Qtrly Incr (decr) FY2021-FY2022	Qtrly Incr (decr) FY2022-FY2023	Qtrly Incr (decr) FY2023-FY2024	Qtrly Incr (decr) FY2024-FY2025	Qtrly Incr (decr) FY2025-FY2026	Cumul Qtrly Incr (decr) FY2022-FY2026
Proposed Rate Structure		2"	12,000	\$ 1,783.80	\$ (35.75)	\$ 52.30	\$ 52.35	\$ 52.80	\$ 52.80	\$ 174.50
Freeze All Rates Year 1		2"	12,000	\$ 1,783.80	\$ -	\$ (0.10)	\$ 66.00	\$ 66.50	\$ 77.60	\$ 210.00
Freeze Sewer Rates Year 1		2"	12,000	\$ 1,783.80	\$ (61.00)	\$ 65.10	\$ 65.20	\$ 65.70	\$ 65.80	\$ 200.80
One Water Rate		2"	12,000	\$ 1,783.80	\$ (218.80)	\$ 40.10	\$ 40.55	\$ 40.60	\$ 40.65	\$ (56.90)

Mr. Gleeson said he was asking for consensus from the Council on which option it would like to move forward with. He hoped to have it adopted by July.

Councilors discussed the options.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table.

Roll call vote:

O'Hearne - yes

Girard - no

Demars - no

Damren - no

Matteau - no

Koloski - no

Contois - no

Stone - yes

Lovett - no

Motion failed 2-7.

Councilors continued discussing the options.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to endorse the City's proposed recommendation for water and sewer rates and to have it go forward to be drafted as an ordinance.

Council would like to know how many users are unable to pay their utility bills. Council would like to notify residents in their bills that federal funds may be available to help with the bills. Also, Council would like an update in the City Manager's Report of the water shut offs and people's ability to pay their bills.

Roll call vote:

O'Hearne - no

Girard - no

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-3.

CITIZEN'S FORUM (Continued)

No one spoke.

Sullivan County ATV Club Class V Roads Permission

Steven Wilkie, Sullivan County ATV Club (SCATV) President, said since the last Council meeting, the Club had a work party and meeting on the 17th. They decided to delay opening the trails. Some trails needed spring work. While out there, they ran into 11 illegal riders from

Massachusetts, who were on the trails before they were open. Trail Patrol gave them a warning. Fish and Game found their vehicles at Blueberry Ridge, instead of where they said they were parked, and those riders were issued tickets. If Council allows the use of the Class V portions of Cat Hole Road and Veterans Parks Road, SCATV could put up a patrol shack that Trail Patrol could staff, and law enforcement could also use it. They are still exploring other parking options. He also talked about what could be done about riding through neighborhoods. As far as dust goes, they have applied for a grant to help defer the cost of paving. Grant in Aid approved a \$38,000 grant to help pave the last half mile on Cat Hole Road. If the Council does not approve the use of the road, they can divert the funds for parking. He talked about the speed limit for OHRVs (off highway recreational vehicles) which is 10 mph on Veterans Park and Cat Hole Roads. If the speed were increased to 20 mph, riders would get to the trails twice as fast and the machines would be quieter, because they would be running in a higher gear. They still have trail work to do this weekend and won't consider opening the trails until June 1st.

Councilor Contois said that because of the noise, he is against allowing ATV riders on the Class V portions of Veterans Park Road and Cat Hole Road.

Jeffrey Williams, Sugar River Drive, Ward 1, said that Cat Hole has always been open to ATVs.

Ian Gates, Ward 2, said that he is an ATV rider and that he has a problem with the closures being based on the emotions of a handful of residents. He would love to see the Council grant this permission and then come up with solutions for the Saracinos and other property owners in the area.

Norm Blouin, Ward 3, said that most of the trails were formed by the snowmobile club. He suggested that ATV speeds can be checked with cameras and then send tickets. Regarding the dust, he suggested oil and stone be placed on the road.

Gary Dickerman, Ward 3 resident and Chair of the Conservation Commission, said regarding parking up beyond the residents, that 8-10 vehicles could park there. He was concerned about expansion. He talked about the natural resource document done in 2013 regarding ecologically significant areas and that number one is the Cat Hole area. If the amount of parking in the area beyond the residents could be capped, that would be helpful to the area in the long run. In March, the Conservation Commission, and the Parks and Recreation Commission agreed this area should be considered for conservation easement. This area has great ecological significance to Claremont.

Maggie Saracino, Cat Hole Road resident, said that she was born in Claremont. She said at one point that Mr. Wilkie had said he wouldn't want this traffic to drive by his home. When they moved into their home, their realtor didn't disclose the ATV trail. They can't open their doors and windows because of the dust and noise.

Mike Saracino, Cat Hole Road resident, said some people just “fly” past their home. It’s noise as well as the dust that is the problem. No one would want this amount of traffic going by their house. He said he was asking for the same consideration as people on Chestnut Street.

Mayor Lovett said regarding the Chestnut Street complaint, that there was never permission granted to ride on Chestnut Street, just permission to cross Chestnut Street. Mr. Morris said that a section of the trail in that area was closed by the private landowner, not the City.

Walt Stapleton, Ward 3 and Veterans Park Road resident said that he appreciates the work done by Mr. Wilkie. Regarding the increase in speed limit from 10 mph to 20 mph, that would enable ATVs to better match the typical speed of regular traffic. Some will drive faster than the speed limit, but the key is enforcement. He would like to see a return to the trail. He talked about using the \$38,000 for enforcement and fencing along the trail and then getting the ATVs off Veterans Park Road and Cat Hole Road.

Ian Gates talked about the use of video cameras and Fish & Game issuing moving violations with the use of video cameras. He is a member of the NH Snowmobilers. He wants the Council to consider the economic impact of reducing trail access to the Cat Hole area. They won’t have access to the gas station and Burger King. He suggested talking to other communities about shared use and best practices.

Norm Blouin, suggested the Council should ride to the top of Cat Hole before making its decision.

Rick Doody, Ward 3, shared the Saracinos’ concerns. He agreed with Mr. Stapleton that enforcement was lacking. Having ATVs on the road is a safety issue. He hears them on the road after dark. The problem needs to be addressed before renewal.

William King, Ward 1, said he is an ATVer and he asked for a time frame for when they could access Cat Hole.

Jeff Williams said he is a new Trail Patrol and that he is willing to do what he can. He talked about the possibility of making a new trail, but it would probably cost more than it’s worth.

Mr. Morris said that portion of Cat Hole Road is on the summer paving schedule, if the budget is approved by Council.

Councilor Koloski talked about people disobeying the law if permission is not granted. He talked about the grant for Police patrol and posed the question for the Police Chief that if there is no officer to cover the weekend shift, can another community’s police officer cover that shift. He would like to try this for this season.

Councilor Stone said that given the information that has been received. He is not in support of closing Cat Hole Road. The main issue is enforcement.

Councilor Girard noted that the Council has already approved the Class VI portions for this season.

A motion was made by Councilor Girard and seconded by Councilor Stone that the Claremont City Council, pursuant to RSA 215-A:15, hereby authorizes the city manager, or his designees, to take such actions as may be necessary to issue a written Permission for Wheeled Vehicle Trail Access to the Sullivan County ATV Club for a period of one year from the expiration of the current Permission. This Permission is for use of designated City-owned class V highways, which lists are to be included with the Permission Form and is subject to all City and state rules and regulations pertaining to use of ATVs and other off-highway recreational vehicles on public property. This Permission is granted subject to the following conditions:

- 1. The City may close one or more roads to ATV use for reasons including but not limited to conditions, maintenance and public safety.**
- 2. Includes the Class V portion of Veterans Park Road, Cat Hole Road (portion), and Petrin Heights Road (portion).**

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - no

Koloski - yes

Contois - no

Stone - yes

Lovett - no

Motion carried 5-4.

Mayor Lovett requested reports be given periodically about how this is going. Her vote in no way reflects poorly on the SCATV. She doesn't think we are at a solution that works for everyone at this time. She asked for that report to be included in the City Manager's Report.

Mr. Wilkie said the Club will decide when to open the trails, but it will not be sooner than June 1.

Mayor Lovett said it will be beneficial for the Council to know how things are going and what the law enforcement measures are and what complaints have been received.

Mr. Morris will talk with Police Chief Mark Chase to see what can be done regarding enforcement and using people from other communities. Councilor Koloski asked for an update of how often that patrol is happening and if there are any issues.

Selection Process for Boards, Committees and Commissions

Councilors:

- Discussed making the form fillable online
- Agreed there should be two applications, one for a first application, and one for a re-application
- Applicant should talk to the chair of the board to find out time commitments, process, etc., but not have to receive their blessing
- Regarding attendance, if there is a problem, board chair should notify the Resource Coordinator
- Every board should appoint a chair

NEW BUSINESS

Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – First Reading

Withdrawn.

Resolution 2021-29 Emergency Operation Plan Update Grant – Public Hearing

WHEREAS the primary goal of developing an Emergency Operations Plan (EOP) is to ensure the protection of life and property during times of emergency and the City of Claremont is scheduled to update the its EOP; and

WHEREAS the City would like approval to apply for, accept, and expend an award of the New Hampshire Homeland Security and Emergency Management Grant in the amount of ten thousand dollars (\$10,000.00), with fifty percent matching funds, for the purpose of updating and reformatting the City's Emergency Operations Plan to meet Federal Emergency Management Agency (FEMA) criteria; and

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$10,000.00, (to have no impact on the tax rate).

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Fire Chief Bryan Burr said the City has an Emergency Operations Plan that was last updated in 2015. Knowing what to do in disaster is critical. This is to help recover quickly during an emergency. Update to action plan will include pandemic information. This is a 50/50 match grant. \$5,000 pays for a consultant. The other \$5,000 can be covered by soft match (i.e. personnel time to help assist in the development of the plan). The City shouldn't have any cash outlay.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adopt Resolution 2021-29 Emergency Operation Plan Update Grant.

Assistant Mayor Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-30 Withdrawal from Capital Reserve for Finance Software – Public Hearing

WHEREAS the City Council, in December of 2007, created a capital reserve from the City's Franchise Fees to be able to retain such fees in excess of its annual budget allocation to CCTV for current and future improvements to the City's communications and technology services, equipment and infrastructure, and;

WHEREAS the current financial software system used by the city was purchased by the City in 2000 and, after 20 years, is no longer being updated; and

WHEREAS the city solicited bids for a new software system, received seven bids, received numerous demonstrations from various vendors and has selected a new software vendor;

NOW THEREFORE BE IT RESOLVED by the City Council to raise and appropriate up to \$400,000.00 for a new Enterprise Resource Planning (ERP) system for the purpose of updating and upgrading the City's financial software and;

BE IT FURTHER RESOLVED that the City Manager and the Treasurer or their designees are hereby authorized to withdraw said funds from the Communications and Technology Capital Reserve Fund (to have no impact on the tax rate) and to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Ms. Walter said there is about \$400,000 in the capital reserve, enough to fund the software. The City did a joint RFP with the City of Lebanon hoping for economy of scale. Both are choosing the same vendor. The current system has been in service for 20 years. The new system offers scalability, accountability, and functionality.

Mr. Morris said there is great efficiency and the ability to have workflow built in. This will allow the City to store documents online, allowing accessibility throughout the staff. There is an annual cost of \$22,000 and an extra fee for the cloud-based system. Ms. Walter said cloud hosting will be \$40,000 a year.

Councilor Demars was concerned what the long-term cost of ownership (subscription) could be.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Resolution 2021-30 Withdrawal from Capital Reserve for Finance Software.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - no

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Mayor Lovett asked in the future to include in the language of the resolution the long term associated costs.

Mayor Lovett said she forgot to ask to take off the table the Selection Process for Boards, Committees and Commissions.

A motion was made by Councilor Stone and seconded by Councilor Girard to take off the table Selection Process for Boards, Committees and Commissions.

Roll call vote:

O'Hearne - abstain

Girard - yes

Demars - yes

Damren - yes

Matteau - abstain

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0, with 2 abstain.

Councilors did not want to make any changes regarding the discussion about the Selection Process for Boards, Committees and Commissions.

Policy Committee Discussion

Councilor Koloski said that it was his understanding that the Policy Committee was created in order to review old ordinances. He understood that items would come to the Council first and then Council would send the items to the Policy Committee.

There was a discussion about Chuck Allen, Arrowhead Recreation Club's, request to increase the area at Arrowhead where alcoholic drinks can be served.

Mayor Lovett said to add that to the June 9 agenda. She said the guidance for staff is that any policy related topic should go to the Council for the Council's decision about where it should go.

Budget

Mr. Morris said regarding the War Credit, Veterans Credit and Elderly Exemptions, those are put into the budget to help show the proposed tax rate. Veterans Credit and Elderly Exemptions are not expenses, but are a tax shift.

Regarding ARPA funds, Councilors were concerned about using those funds for the budget and then not receiving them. Mr. Morris would like to have that discussion on June 9th.

Councilor Matteau asked for a five-year history of the Grand List.

Resuming In-Person Council Meetings in Council Chambers

There was a discussion about resuming in-person Council meetings in Council Chambers. Most Councilors were in support. Councilor Contois preferred to stay home and asked if the Zoom option would still be available.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone that the Council will come back to Council Chambers in June.

After more discussion, Mayor Lovett said that if Councilors had concerns, to send them to the City Manager.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 8-1.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Matteau asked about the Rail Trail encroachments. Mr. Morris said he has run it by Attorney Tanguay and sent it to the state. It is not on the next agenda.

Councilor Koloski asked about the RSA 91-A request to disclose Councilor emails. He asked in the future what the best route to take is in order to not tie up staff time and a better way for the public to access the information. He asked, going forward, to get continual updates on RSA 91-A requests and the costs.

Councilor Koloski asked when crosswalk painting will be done. He said at one point, Council had talked about a sidewalk plan, so that all sidewalks in the City are uniform. He doesn’t want to lose sight of that. Mr. Morris said line painting (including crosswalks) will be completed before the end of June. Regarding sidewalks, Public Works Director Alex Gleeson and Planning and Development Director Nancy Merrill are working on a list of sidewalks to make a recommendation to the Planning Board for review before it comes back to the Council.

Mr. Morris listed the action items:

- Advertise Policy Committee and Airport Advisory seats
- Draft Donation Policy as an ordinance and put in language that people have the ability to come before the Council to give those donations
- Get more information on utility funding
- Get the numbers on the medium commercial water users and how many have fallen behind in their payments
- Update on utility bill shut-offs
- Prepare ordinance for water rates

- Check on Councilor Koloski's question about using other certified officers for ATV patrol
- Finish fillable forms applications
- Recommendations that came out of the policy discussion
- Board Chair discusses duties and commitments, not approval
- Board Chair responsible for monitoring attendance
- Upload citizen Emergency Operations Plan to the website
- Review ARPA funds to be used for revenue loss
- Will email Grand List/tax valuations to Councilors
- Follow-up with State regarding the Rail Trail lease
- Start tracking costs of RSA 91-A requests
- Update ATV trails on City Manager's Report
- Mayor Lovett added to change the ordinance regarding appointment of Police Commissioners to be made by the Council, effective May 17

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 10:16 p.m., a motion was made by Assistant Mayor Damren and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell

Clerk to the Council